

The Claremont City Council held a meeting on Wednesday, October 13, 2021, in the Council Chambers of City Hall.

The meeting was called to order by Assistant Mayor Damren at 6:33 p.m.

Members of the Council present:

Ward I Councilor Andrew O'Hearne
At-Large Councilor Dale Girard
At-Large Councilor Michael Demars
Assistant Mayor Allen Damren
At-Large Councilor Debora Matteau
At-Large Councilor Nicholas Koloski
Ward II Councilor James Contois
Ward III Councilor Jonathan Stone

Absent:

Mayor Charlene Lovett

Also present:

Edward Morris, City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

None.

Mr. Morris said there were problems with Facebook, so the Council meeting would not be shown live on Facebook.

REPORT OF THE SECRETARY

A motion was made by Councilor Matteau and seconded by Councilor O'Hearne to accept the minutes of the September 22, 2021, City Council meeting, as amended.

Councilor Girard said on the top of page 9 that it should be Chief Burr, not Chief Chase.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Motion carried 8-0.

MAYOR'S NOTES

Citizen Recognition – Rob Walker

Assistant Mayor Damren said there have been some very good bicycle races in the City and the key person to get that done was Rob Walker. He said that this past year, Rob Walker has gone above and beyond what would be expected from any volunteer. Rob coordinated a team of trail builders and rehabilitated some old mountain bike trails and built new trails on the City of Claremont's Arrowhead Recreation Area. Word came through in February 2021, that Arrowhead had been chosen by Eastern States Cup as a site for a world qualifying mountain bike race. The race took place on the weekend of August 21 and 22, 2021. The trails were filled with nearly 350 racers making the enduro mountain bike trails at Arrowhead the new place in the northeast where mountain bikers are coming to test their skills on the advanced terrain.

Mr. Morris said that Mr. Walker put a lot of work and time into those mountain bike trails. He was the key component to bringing the race here. Mr. Morris said we are seeing cars parked at Arrowhead that have out of state license plates. Some people are interested in moving to Claremont due to being here for the Eastern State Cup. Last weekend, approximately 200 riders raced at Arrowhead and at Moody Park.

Mark Brislin, Parks and Recreation Director, said that Rob and his crew could be found at Arrowhead working many hours. He thanked Rob's wife, Leslie, for her support, and he thanked Rob for all of his efforts. UNH (University of New Hampshire) put on a race this past weekend in Claremont and 15 colleges were represented. They did cross country at Moody Park and downhill enduro at Arrowhead.

Rob Walker spoke about his love for Claremont and its potential, and his love of mountain biking. He said between Arrowhead and Moody Park, two types of biking can be accommodated. He said he had a lot of volunteer help.

Mr. Morris talked about the all the work that Rob and the volunteers had done on the trails and that the work was done by hand tools. He thanked Rob and all the volunteers that helped.

In addition to the bike races, Assistant Mayor Damren said that Claremont has recently had a couple of parades. Councilor Koloski said the 135th Annual Fire Prevention Parade was held last week and the turn-out was great, in spite of the altered route. He thanked all who participated.

Assistant Mayor Damren said the Alumni Day Parade was also well attended and he was glad that Claremont has activities like that to bring the community together.

CITY MANAGER'S REPORT

- **147 Main Street** – After the last Council meeting, Councilor Stone asked for the amount that has been paid or is being paid for the project at 147 Main Street. The CDBG contract budget was \$25,000 for administration costs and \$474,500 for rehabilitation, with a total CDBG amount for \$499,500. In May of 2021, the City submitted a reimbursement claim covering \$5,708.96 for administrative costs and \$237,500.00 to Mike Lemieux/Pine Hill Construction for wall shoring. The total amount of this reimbursement equaled \$243,208.96, leaving a remaining balance of \$256,291.04. We have not received any invoices at this time from LPH, Inc. for the new wall construction or interior rehab.

The City has not had any direct expenditures outside of the grant for 147 Main Street. We have had expenditures for 139 Main Street, which equals \$111,900.26 since 2019, for Engineering and work leading up to and including demolition.

- **City Planner** – deForest Bearse has been promoted to the position of Planner for the City of Claremont. Below is an excerpt from a letter sent by the Planning and Development Director Nancy Merrill to the City's land use boards outlining Ms. Bearse's experience which made her a great candidate for this position. He congratulated and welcomed Ms. Bearse to her new position.

deForest has spent the last 7 years in our department working as the Resource Coordinator. In that role she staffed the Historic District Commission and Conservation Commission, as well as supporting Planning & Zoning Boards. She wrote the Natural Resources and Historic Resources chapters of our Master Plan, obtained Certified Local Government status for the city from the NH Historic Preservation Office, and assisted the team with the Capital Improvement Plan. Prior to her work in Claremont she was the Land Use Administrator in Weathersfield for 12 years and Planning Coordinator in Winchendon, MA for 4 years. She brings a great deal of experience in planning and zoning, public meetings, workshops and master plans. deForest has a B.A. in Earth Sciences from Bridgewater State College and a M.S. in Mineral Resources Ecology from Colorado School of Mines.

- **MS-1 Filing Extension** - Due to some delays in receiving all of the utility valuation information, the Assessing Office will be filing an extension until early November for the filing of the City's MS-1 report (Summary Inventory of Valuation). The extension

He said the extension was filed to November 1st.

- **Transfer Station Ad Hoc Committee**- The City continues to advertise for the Transfer Station Ad Hoc Committee, with a function of studying operational efficiencies and the advantages and disadvantages of privatization.

The City has received two applications.

- **Elections** – Municipal elections will be held on November 2, 2021. Prior to the elections, the Supervisors of the Checklist will be in session on Saturday, October 23, 2021, from 11 A.M. to 11:30 A.M. in the City Clerk's office at City Hall for the purpose of registering new voters and making corrections to the voter checklist. This is the last day to make changes prior to the election.
- **Pleasant Street** – Sewer line work continues along Pleasant Street. Crews are finishing tying in the sewer line to the buildings on the west side of Pleasant Street and will be moving to the east side as soon as they are finished. Once the crews set the first couple sewer line tie-ins near Taverne on the Square, they will be able to begin placement of the new water line. This water line work is slated to begin the week of October 11, 2021. As a reminder, Pleasant Street will be closed to traffic during the day, but should be open to traffic during evenings and weekends.

In addition to the work on Pleasant Street, the City expects work to begin on the installation of truck route signage within the next week.

- **COVID-19 Update** – Over the past week, Claremont has had a substantial increase in active COVID-19 cases. As of the time of this report, Claremont has 112 active cases. Sullivan County's infection rate is at 1.2, meaning each active case is currently infecting more than one other person.

Mr. Morris said as of today, there are 108 active cases with a 1.2 infection rate.

Starting on Monday October 11, 2021, the State will be operating a COVID-19 testing site at River Valley Community College (1 College Pl, Claremont, NH 03743).

Hours of operation will be Monday through Friday, 9:00 a.m. to 3:00 p.m. The test is free.

The City continues to follow the CDC's current recommendation that all people, including those that are fully vaccinated, wear a mask in public indoor settings in areas of substantial or high transmission. Sullivan County, and all other counties in the state, continues to have substantial transmission rates.

Mr. Morris said the Fall Clean-Up will be Monday, November 1, through Friday, November 5. He referenced emails the Council received from a citizen regarding community power aggregation saying the City has been working with the Community Power Coalition of NH. Planning and Development Director Nancy Merrill, her staff, and he, have been staying in contact and attending meetings with the coalition. Community Power Coalition of NH has filed paperwork to become a coalition. Thirteen cities and towns, and one county, have joined the coalition. They are still writing rules to submit to the PUC. So, Claremont is not at a point to

enter into a power purchase agreement. The City is waiting and watching at this time. He would like to see Claremont's Energy Aggregation Committee put some work into what a plan might look like. A lot of the communities that are in the community power aggregation game are in it to make that a part of their portfolio to move more toward green energy, and not necessarily to save money. If the City decides to do this, it will be the City moving into the energy utility business, which involves billing, reading meters, etc. As we get more information, it will be brought forward to the Council.

Regarding demolition of two buildings on Main Street, the City has \$68,000 for property cleanup and we have put out an RFP (Request for Proposal) for the demolition.

Councilor Girard thanked Fiske Free Library Director Michael Grace for finding ARPA funds through the NH State Library in order to offer online live tutoring through the Brainfuse HelpNow service.

Councilor O'Hearne asked about the status of 147 Main Street, and about who is responsible for the damage being done to the rotary, flowers, etc., as a result of the Pleasant Street Project. Mr. Morris said the original truck company did the damage, and the City is going after their insurance for payment. The City will wait until the project is completed before the repairs are made. Councilor O'Hearne asked that if there is not enough space for the trucks to make the turn, to see if the cones can be moved. Mr. Morris said there is a detour for trucks to go down Main Street.

Councilor Koloski asked to ensure voting signs go out (A-frame & scrolling message board).

Councilor Girard asked about the truck route. Mr. Morris said the signs should be placed soon.

Councilor Contois asked about the status of the election machines. Mr. Morris said Gwen Melcher, City Clerk, can address that when she arrives.

APPOINTMENT TO BOARDS AND COMMITTEES

Fiske Free Library Board of Trustees

A motion was made by Councilor Koloski and seconded by Councilor Matteau to reappoint John Hurley to seat 1 of the Fiske Free Library Board of Trustees.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes
Stone - yes
Motion carried 8-0.

CITIZEN'S FORUM

Councilor Contois asked about the status of the election machines. City Clerk Gwen Melcher said the machines are maintained yearly. They are not hooked up to the internet at the polls; they are free standing. When they are not in use, they are sealed and locked up. The machines are tested before every election and those testing events are open to the public.

Tom Luther, Ward 3, said he is a big fan of Charles Marohn's book, "Confessions of a Recovering Engineer." He said the focus is on value per acre. He said he would be happy to buy books for those who are interested.

OLD BUSINESS

Ordinance 585 Remove School Zones – Second Reading – Public Hearing

The purpose of this proposed change is to delete two school zones for speed limit purposes from the current list. The reason for this amendment is that these two school zones no longer have schools operating in the vicinity that would require a reduced speed limit during opening and closing school time periods. The school zone on Central Street is no longer needed because the Christian Academy has moved to a different location and there is currently no school in that area. The school zone on Old Church Road is no longer needed because the New England Classical Academy has closed and there is currently no school in that area.

Enactment of this Ordinance will revise Chapter 19, Traffic and Motor Vehicles, Article XI, Section 19-233 by removing the school zones on Central Street and Old Church Road so that reduced speed limits at the beginning and end of the school day will no longer apply in those locations. This change was requested by the City's Traffic Advisory Committee.

A motion was made by Councilor Girard and seconded by Councilor O'Hearne to adopt Ordinance 585 Remove School Zones.

Councilor Girard read the ordinance into the record.

Assistant Mayor Damren opened the public hearing.

Tom Luther, Ward 3, asked if this is for charter schools and religious schools. Assistant Mayor Damren said it applies to all schools.

Roll call vote:
O'Hearne - yes

Girard - yes
Demars - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Motion carried 8-0.

NEW BUSINESS

Donation of Motorcycle from Ford of Claremont to the Police Department

Christian Gomes, owner of Ford of Claremont and Jeep/Dodge of Claremont, had offered to donate a 2021 Harley-Davidson motorcycle to the City of Claremont Police Department to start the motorcycle unit. Deputy Chief Mark Grasso was a motorcycle officer at his former department, and he holds a police motorcycle instructor certification.

Mr. Morris said over the last couple years, Ford of Claremont has donated vehicles to the City and they wanted to continue with this donation.

Police Chief Mark Chase said this is the third year in a row that he has been approached by Christian Gomes from Ford of Claremont to donate a vehicle to the City. This year Mr. Gomes wanted to donate a motorcycle to the Claremont Police Department.

Chief Chase introduced Deputy Chief Grasso. Deputy Chief Grasso said he came from a Police Department that had a motorcycle unit. He said there are a lot of benefits to having a motorcycle unit (public safety, community relations, etc.). He talked about recruitment and retention and that tools such as the OHRV, K-9 and motorcycle units, will help with that. Chief Grasso said he is a certified motorcycle instructor. There are at least two people in Claremont's Police Department that have motorcycle licenses.

Regarding costs, Chief Chase said there will be maintenance (oil changes, tires, etc.), but it is hard to know the exact amount for the first year. They don't expect the costs to be higher than a fleet vehicle. Using the motorcycle would take a cruiser off the street at the same time. He believes the costs will be absorbed into the normal operating budget. They will need cold weather gear, leather gear, helmets, etc. The ultimate goal is for Deputy Chief Grasso to do in-house training. Chief Chase said that Mr. Gomes intends to letter the bike and that the Police Department will use the motorcycle for as much of the year as they can.

A motion was made by Councilor Contois and seconded by Councilor Stone that the Claremont City Council hereby accepts with sincere appreciation a donation from Ford of Claremont of a 2021 Harley-Davidson motorcycle with lettering, valued at approximately \$25,000.00, for the Claremont Police Department.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 8-0.

Chief Chase said in the near future, he plans to have an unveiling of the motorcycle and he will invite the Council.

Proposal to Refuse Tax Deed

Mr. Morris said this was sent to the NICE Committee and they worked with City Clerk Gwen Melcher to determine which properties should go on the Refuse Tax Deed list.

Ms. Melcher said the Council will vote on the properties that the City will not tax deed. The law allows her to go forward with the ones that are being tax deeded.

Regarding the two properties listed under Hazardous Issues, Mr. Morris said that for 36 Sugar River Drive, the state is going after the property owner to clean it up and that Claremont needs to do more research on the 225 Twistback Road property before it is taken.

Councilor Stone asked for a follow-up from the state to see if anything can be done with the Sugar River Drive property. Mr. Morris said that can be worked on, or the City can start to budget funding to clean it up and then take it. However, we have the Main Street properties, a property on Central Street, and others that he feels are more pressing to take care of.

A motion was made by Councilor Matteau and seconded by Councilor O’Hearne that the City Council, having reviewed the list of impending tax deed parcels as presented by the City’s Tax Collector, hereby notifies the Tax Collector that she shall not execute a deed of the real estate to the City for the following parcels because the Council has determined in its judgment that acceptance would subject the City to undesirable obligations or liability risks, including the potential liability as an owner of property under state and federal law, which imposes strict liability on owners for environmental impairment of the real estate involved:

PAYMENT AGREEMENTS

34 MADISON PL

57-21-32

5 DENNISON AVE

129-141-12

BANKRUPTCY

32-34 MCKENZIE DR	130-62
33 UPHAM PL	159-56-12
14 UPHAM PL	159-56-20

ESTATE ISSUES

22 UPHAM PL	159-56-24
12 LEA ST	143-7
20 GOYETTE AVE	131-255

HAZARDOUS ISSUES

36 SUGAR RIVER DR	158-6
225 TWISTBACK RD	82-79

The City Council further authorizes the Tax Collector or other City official to enforce all such tax liens upon the above-listed properties, as provided by RSA 80:50 and through any other remedy provided by law.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 8-0.

Ms. Melcher said it will take some time to record the deeds, send out the notices of eviction along with the letters for right to repurchase, and then auction the properties. Currently, she has a staff of only two people, including herself.

Resolution 2022-10 Camping Fees Proceeds from Eastern States Mountain Bike Race to Arrowhead Recreation Club – Public Hearing

WHEREAS on August 22, 2021, the Claremont Parks & Recreation Department (the “Department”), hosted the Eastern States Cup (ESC) Enduro Mountain Bike Race; and

WHEREAS the Department collected \$1,350.00 from overnight camping fees at Arrowhead Recreation Area; and

WHEREAS the Parks & Recreation Department would like to now distribute these funds to the Arrowhead Recreation Club;

NOW THEREFORE BE IT RESOLVED that the City Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to withdraw the total amount of \$1,350.00 from the Parks & Recreation Revenue Account and to distribute the sum of \$1,350.00 to the Arrowhead Recreation Club; and

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 vote required)*

Mr. Morris said participants of the Eastern State Cup Enduro Mountain Bike Race were allowed to camp at Arrowhead for a fee.

Mark Brislin, Parks and Recreation Director, said they had worked with Arrowhead Recreation Club for onsite camping and now he would like to distribute funds to Arrowhead Recreation Club to help offset operation costs.

A motion was made by Councilor O’Hearne and seconded by Councilor Koloski to adopt Resolution 2022-10 Camping Fees Proceeds from Eastern States Mountain Bike Race to Arrowhead Recreation Club.

Councilor O’Hearne read the resolution into the record.

Assistant Mayor Damren opened the public hearing. No one spoke. He closed it.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 8-0.

Resolution 2022-11 Parks & Recreation Non-Capital Reserve Fund for Trails – Public Hearing

WHEREAS the City has determined there is a need to establish a non-capital reserve for the Parks & Recreation Department for the maintenance and development of trails in Claremont; and

WHEREAS the monies needed to establish a non-capital reserve fund for the Parks & Recreation Department would come from up to 50% of race fees collected and 100% of donations collected at these events; and

NOW THEREFORE, BE IT RESOLVED that pursuant to RSA 34:1-a, the City of Claremont hereby establishes a reserve fund to be known as Non-Capital Reserve Fund for Parks & Recreation for the purpose of maintenance and development of the trails in Claremont; and

BE IT FURTHER RESOLVED that the City Manager or his designees will cause up to 50% of race fees collected, and 100% of donations received at these events to be deposited into the Parks & Recreation Non-Capital Reserve Fund Account;

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(Majority Vote Required)*

Mr. Brislin said he would like to use a portion of the fees, and all of the donations to maintain the trails.

A motion was made by Councilor O’Hearne and seconded by Councilor Matteau to adopt Resolution 2022-11 Parks & Recreation Non-Capital Reserve Fund for Trails.

Councilor O’Hearne read the resolution into the record.

Assistant Mayor Damren opened the public hearing.

Tom Luther, Ward 3, said that he volunteers at Arrowhead and asked where the tools would be maintained/stored. Mr. Brislin said this is not just for Arrowhead trails, but for all the trails in the City and it may not be tools, but could be blue stone, culverts, etc.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 8-0.

Pleasant Street Project Easements

The Pleasant Street project is reconfiguring available parking to maximize existing surface parking. Currently there are two access driveways that abut one another between Map 120, Lot 73 and Map 120, Lot 72. One is owned by the City and the other by Claremont Goodefellas. The conceptual plan merges the two driveways into one to allow head-in parking along the north wall of Map 120, Lot 72. The remaining access driveway would continue to serve the Goodefellas building and their associated parking lots, as well as the two City-owned parking lots at Tax Map 120-72-1 and 120-64.

Nancy Merrill, Planning and Development Director, said this is the first of several easements. She will come back in the future with one that is across the street, in the alley next to Daddy's Pizza, and then there will be some changes in the rights-of-way in the Broad Street parking area. One of the things we are trying to do is maximize surface parking, and this is one of the areas where we could gain parking spaces. Currently, there are two access points there, one for Goodfellas building and one for the City going into the Latchis parking lot. The City is asking that property owner to allow an easement over his driveway, and then the City's driveway will become parking along that wall with head-in parking. The map given to the Council shows the head-in parking going east, but it would be head-in parking going west.

A motion was made by Councilor Koloski and seconded by Councilor O'Hearne that the Claremont City Council hereby authorizes the City Manager or his designees to negotiate, execute and take all such actions as may be required to acquire an easement or cross-easements for access to city lots, including Map Lot 120-72-1 and Map Lot 120-64 over Map Lot 120-73 upon such terms and conditions as the City Manager or his designees may determine.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 8-0.

City-Owned Properties – Beauregard Village

In 1981 Claremont applied for federal assistance from HUD (Secretary's Discretionary Disaster Funds) to acquire 34 properties and relocate 27 mobile homes and 2 single family home families from the floodway in Beauregard Village. The Beauregard Village Disaster Budget Narrative lists as follows:

2 mobile homes destroyed by fire
16 mobile homes & property severely damaged by flood water & ice
6 mobile homes threatened by remaining in flood way
2 single family homes severely damaged
3 mobile homes threatened by remaining in 100-year flood on fringe of floodway
Land only, 5 privately owned, 2 publicly owned

The application called for demolition of any improvements that couldn't be moved and development of open space along the Sugar River for recreational use. The application followed a flood that resulted in property damage and loss of life.

The grant (or FEMA assistance) was written with the intent to purchase or take by imminent domain, if necessary, all of these properties. To re-locate the citizens to a better, safer place. The properties were appraised and held to a value that was meant to be "undevelopable".

The City currently owns the following parcels:

- Beauregard Street Map Lot 82-14 - 2.37 acres. 9 dwellings were removed from this parcel as part of the disaster project.
- Beauregard Street Map Lot 82-26 - 1.63 acres. 6 dwellings were removed from this parcel as part of the disaster project.
- Beauregard Street Map Lot 82-27 - 2.41 acres. 6 dwellings were removed from this parcel as part of the disaster project.

The land parcels were not acquired by the City as part of the project.

None of the deeds contain the restrictions on development on the parcels intended by the purposes of the grant.

The City recommends the City Council authorize recording a Declaration of Restrictive Covenants setting forth in detail the restrictions affecting the property; they would run with the property in perpetuity. The following restrictive covenant language appears in one of the documents related to the grant:

“...that the land is dedicated in perpetuity for open space purposes, that the community shall faithfully manage the land for its dedicated open space purposes, for public use, and that the community shall not erect or permit to be erected any structures or other improvements on the land, unless such structures are, except for restrooms, open on all sides and functionally relate to some open space use, all of the foregoing restrictive covenants and agreements to run with the land and be binding on subsequent successors, grantees and assigns.”

Mr. Morris gave some background information.

Ms. Merrill said in 1981 that there was a very bad flood in Beauregard Village where a couple of mobile homes were destroyed by fire and a woman lost her life. She said the City got a HUD (Department of Housing and Urban Development) grant to buy out those trailers and that property, and to move people to other locations. The purpose of the City receiving the land was to hold onto it for a public purpose. The City has not been able to find the signed and executed grant agreement. These properties sit on the City's property list and it needs to be made clear that these are not good properties for housing.

Councilor Matteau said she worked for the City in the CDBG office at that time and she remembers that the purpose was to get people out of the floodplain.

Councilor Koloski asked about ensuring there is no encroachment from abutting properties and what the use of the properties would be. Ms. Merrill said she would recommend the Conservation Commission and the Parks & Recreation Commission meet to discuss this.

A motion was made by Councilor Koloski and seconded by Councilor Girard that the Claremont City Council hereby authorizes the City Manager or his designee to record a Declaration of Restrictive Covenants setting forth in detail the restrictions affecting the properties at Map Lot 82-14, 82-26, and 82-27; they would run with the properties in perpetuity.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 8-0.

Order for Abatement Costs Pursuant to RSA 147:7-b – 24 Schmitt Street

This property has been abandoned by the record owner (Thomas McCoy) and has been the subject of multiple enforcement actions by the Health Officer/Building Inspector's office over the past year. The police have also been at the property multiple times.

Ms. Merrill said that the property is going up for auction on October 20th. She said that Enforcement Actions 1 and 3 are for clean up and they go with the property, so the attorney is recommending the City notify the owner and the mortgage holder and be at the auction, so that anyone bidding is aware that there is a lien action in the works. The owner has 30 days to respond to it. Enforcement Action 2 is against the owner, so you can't lien those attorney fees.

A motion was made by Councilor Koloski and seconded by Councilor O’Hearne that the Claremont City Council hereby authorizes the City Manager or his designee to execute and perform all actions as may be required on behalf of the City of Claremont to issue an Order for Abatement Costs to the record owner of 24 Schmitt Street pursuant to NH RSA 147:7-b to recover the City’s expenses incurred in the removal of trash and unsanitary material at 24 Schmitt Street, which constituted a public health hazard.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 8-0.

Whitewater Watershed Source Protection Update

The Whitewater Watershed Management Plan was created and put into action in October 2020. Since the creation of the management plan, there have been several objectives met to include:

1. Decoys – Coyote Decoys have been installed to help curb migratory birds from landing
2. Information Kiosks near water sources for public awareness and education are currently being worked on with a partnership with the Sugar River Valley Regional Tech Center to build the kiosks with the carpentry students utilizing source water protection grant funding.
3. Leak Detection – Claremont is on the list for NHDES grant funding which was put on hold due to short staffing during COVID and anticipated to be available in the spring of 2022
4. Smart Hydrant Research is currently being done to help minimize response time for water breaks within the city.
5. Dam Inspections at the reservoirs (conducted in July by the state) – Waiting for full reports
6. Partnership with ATV club to ensure bridges are repaired and maintained as needed to ensure non-point pollution within the watershed
 - ATV Club fixed the approaches to a few bridges, put in a box culvert and added signs to the the new trail on Whitewater brook trail south of the reservoir. The posted speed is now 20 mph as agreed upon in the watershed plan. There is also a major bridge project on Cornish turnpike which is Town of Cornish. The Whitewater Brook trail is now open but still have many ideas for this section to implement for the protection of the water and the trails into the future.

7. Working with NH VLAP (Volunteer Lake Assessment Program) for water quality testing and bathymetric mapping equipment

Mr. Morris said that Mayor Lovett had asked that the City do this update.

Alex Gleeson, Public Works Director, gave a brief overview of the update that was included in the Council packet.

Councilor Contois asked who inspects the dams and if there is a current report on the dams. Mr. Gleeson said there was a dam inspection in July and the report should be out in the next few months. It is done by DES (Department of Environmental Services) and EPA (Environmental Protection Agency).

Councilor Contois asked about rebuilding the Whitewater upper reservoir. Mr. Gleeson said it will be a big undertaking. At this time, no engineering plan has been done to rebuild the dam on top.

Vacant Property Registration LSR Discussion

Vacant property registration is a tool that communities use to address blight and City Staff believe it would help in Claremont's fight against blighted buildings. The registration process would allow the City to track vacant structures in the City, and would give the City a way to collect contact, insurance, and other pertinent information. Currently, the City is not authorized to have a vacant property registry, however, State Senator Suzanne Prentiss would be willing to submit an LSR (Legislative Service Request) on Claremont's behalf.

Mr. Morris gave a brief explanation. He said he believes this would be a good tool to help fight blight in the City. He asked for consensus on whether or not the Council agreed the City should work with Senator Prentiss on this.

Councilor O'Hearne said before he would support this, there would need to be support of other cities before going forward. Mr. Morris said he has not contacted any other cities, but could do so prior to the legislative session.

Councilor Matteau thought this was a great idea and that it would be a useful tool in helping to solve Claremont's housing crisis.

Councilor Koloski thinks it would be up to the Senator to rally support of the other communities, not the City Manager.

A motion was made by Councilor Koloski and seconded by Councilor Matteau to authorize the City Manager to act on our behalf to work with Senator Prentiss to present an LSR to establish a vacant property registration.

Councilor Stone asked if this could be a consensus instead of a motion to have the City Manager work with Senator Prentiss to determine the best course of action.

Councilor Koloski withdrew his motion and Councilor Matteau withdrew her second.

There was consensus of the Council that Mr. Morris work with Senator Prentiss to see what the best way is to go forward to have enabling legislation enacted.

COMMITTEE REPORTS

Councilor Stone said the Policy Committee is working on a 91-A policy for the Council.

Councilor Matteau asked if the City Manager and Staff are classifying their emails, so that the next time there is a request for emails, the City is not sending 8,000 emails to the attorney. Mr. Morris said he is working on his emails and he is working on a policy for Staff.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Girard asked that because of the problems CCTV was having broadcasting the meeting, if the Zoom recording can be added to the City's website and Facebook page. Mr. Morris said yes.

Councilor Girard asked for an update on how long into the winter Pleasant Street will be worked on and what shape the road will be in. Mr. Morris said he will work on a plan. The weather will help determine when the asphalt plant closes.

There was a discussion that Councilors wanted to make it clear on the Council agendas that citizens could participate in the Council meetings via Zoom.

Councilor Stone would like to have another Zoom discussion in the future.

Councilor Koloski asked for clarity on the Transfer Station Ad Hoc Committee. Currently, there are four seats which could lead to a tie vote. Regarding the Mayor making the appointments, he would like to see those be Council appointments. Councilor O'Hearne said that there was a vote earlier that all appointments would be made by Council instead of the Mayor. Councilor Stone asked to clarify that appointments to this Committee would be made by a vote of the Council. Some Councilors said yes. Mr. Morris said we would look into that.

Councilor Contois would like to know how old the water tanks are and what their life expectancies are. Mr. Morris can get that information.

A motion was made by Councilor Stone and seconded by Councilor Matteau to move the Non-Public session to October 19.

After some discussion, Council changed the motion.

Councilor Stone amended his motion to contact John MacLean to see his availability for the 19th, and to keep the Non-Public session on October 26th in case he's not available. Councilor Matteau accepted the amendment.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - no

Stone - yes

Motion carried 7-1.

Councilor Stone said the October 19th Non-Public Session would be for personnel.

A motion was made by Councilor Stone and seconded by Councilor O'Hearne that the Transfer Station Ad Hoc membership be three members instead of four.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 8-0.

Councilor Koloski asked for an update on staffing levels in Central Collections. Mr. Morris said he will get an update on that soon.

Councilor Stone noted that Ms. Richmond was present, and asked her if there were any agenda items she wanted to bring up. Ms. Richmond said the Deputy City Clerk's position has been offered to three people who have turned it down due to pay. They would have to take pay cuts of \$5-\$6 in order to accept the position. Also, Central Collections has a part-time person that has not had a raise in two years.

The office is in need of immediate relief. There may be a reduction in open-to-the-public hours in order for staff to get their work done. She'll work with Mr. Morris on that. The Deputy Clerk's position is a union position with a maximum pay of \$19.30 an hour.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 8:59 p.m., a motion was made by Councilor Stone and seconded by Councilor Matteau to adjourn.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council